

April Term AD 1845

J. M. D. Rice

vs. In re subject's estate

Record in
Book 10th
Page 101

This day came the Plaintiff by their Attorney & the Defendant being solemnly called to show cause why execution should not be awarded against their lands & tenements same not but under default. It is therefore considered that the said Plaintiff have their execution against the lands & tenements of the said Defendant for the sum of \$89.40th their damages in this behalf assessed & also for the costs in this behalf expended taxed to

Christopher Myers

vs. Plaintiff

This day came the Plaintiff by their Attorney & discontinued their cause whereupon it is considered that the Defendant go hence without day & record of the Plaintiff's costs herein expended taxed to

Andrew Phillips

vs. Defendant

This day came the Plaintiff by their Attorney & discontinued their cause whereupon it is considered that the Defendant go hence without day & record of the Plaintiff's costs herein expended taxed to

George B. Conner

vs. Defendant

This day came the Plaintiff by their Attorney & discontinued their cause whereupon it is considered that the Defendant go hence without day & record of the Plaintiff's costs herein expended taxed to

Charles Swinton for vs

vs. Attachment

Edward W. Wells Letter discontinued & Clerk for said Plaintiff for his fees by Defendant

John Graham

vs. Plaintiff

David Eaton Stricken from the Record

Charles Swinton for vs

vs. Attachment

Edward W. Wells Letter discontinued & Clerk for said Plaintiff for his fees by Defendant

Symon Carpenter et al

vs. Partition

Adah Carpenter et al This day came the Plaintiff by

Thursday April 10th 1845

by their Attorney & records proof of publication, made hence as per 1st & 2nd record continued

Adah P.

At this term the following Executors Administrators & Guardians filed their accounts current together with their receipts and vouchers for final settlement to wit:

George Thompson & Edward Thompson Executors of Stephen Thompson dec'd.

Black Benson Executor of Edward J. Goodrich dec'd.

Lucina Regatt Executor of Samuel G. Regatt dec'd.

Eliza Sturtevant Executor of Samuel G. Sturtevant dec'd.

Samuel Sturtevant Executor of Samuel Sturtevant dec'd.

Robert Lewis Executor of William L. Lewis dec'd.

William J. Carpenter of John Jones dec'd.

Jonathan Brown & Mary White Executors of Jeremiah Roberts dec'd.

Margaret Williams of John W. Gray Executors of George Smith dec'd.

Melvin Carr Executor of George Carr dec'd.

Charles Carpenter Guardian of Sarah & Elizabeth P. Merrill

Court

Ordered by the Court that the Presenting Attorney of this Court to attend the said forty dollars for his account at each term of this Court during the ensuing year.

Record in

Book of Dec.

No. 1234

This day came into Court William Cunningham Guardian of Purity A. Thomas & Thomas A. Cunningham Executors of J. A. Cunningham dec'd. and records a final settlement of his accounts as Guardian. Whereby it appears that the said Guardian has account assets of his wards to the amount of \$234.00th and that he has legally disbursed the sum of \$17.37 leaving a balance in his hands of \$216.63 and the said Wardchildren order to be paid ten days or an attachment to this

Ordered that this Court closed adjourned until September commencing at Nine O'Clock

Wm. J. Jones

Friday April 11th 1845

Court met pursuant to adjournment present the Associate Judges of said Court.

Removal to Seal by Court

vs. Plaintiff

Elizabeth Seal et al Over motion to the Court by David Swinton and David Conner for the Plaintiff's report concerning the assignment of dower & of permanent small house under a former order of this Court. It is ordered that the said Plaintiff proceed according to law to sell the real estate in the partition devised above the premises subject to the House estate herein of the said Widow and upon the following terms to wit: one third money in hand, one

298 . Recorded in Book No 10 Page 10 --- April Term A D 1845 J. M McKee or see to subjtlands & J Benson --- This day came the Plffs by their Atty & the Deft being solemnly called to show cause why execution should not be awarded against their lands & tenements came not but made default . It is therefore considered that the said Plffs have their execution against the lands & tenements of the said Deed for the sum of \$ 89 , 42) their damage in this behalf assessed & also for his costs in this behalf expended taxed to dollars Christopher Myers to Samuel Wenner Reple This day came the Plff by his Ally & discontinued this cause whereupon it is considered that the Deft go hence without day & recover of the Plff his costs herein expended taxed to dollars Andrew Philips . or Assumpsit Joseph Layman This day came the Plff by his Atty & discontinued this cause whereupon it is considered that the Deft go hence without day & record of the Plff his costs herein expended taxed to dollars George B Arnold \$1 2 Debt Edward Brooks This day came the Plff by his Atty & discontinued this cause whereupon it is continued that the Deft to hand without day & recover of the Plff his costs herein expended taxed to dollars Charles Sweetser fore or attachment Edward W Wills , Settled , discontinued & Clerk for paid Sheriff fees to be paid by Deft Stricken from the Docket John Graham or Replevin Aaron Caton Charles Sweetser for or attachment Edward W Wills settled discontinued & Clerks fus paid . Sheriff fees to be paid by Deft Lyman Carpenter Hal & partition Adah Carpenter etal This day came the Petitioner by Certified (as Friday April 11th 1845 . Court met pursuant to adjournment present the Associate Judges of said Court . Ananias C Leak by Admr on Pet to sell land Elizabeth Leak tal On motion to the Court by Mert Swarte and Barnet Counsel for the Petitioner upon producing the assignment of down & appraisment made herein under a former order of this Court It is ordered that the said Petitioner proceed according to law to sell the real estate in the petition described upon the premises subject to the dower estate therein of the said Widow and upon the following terms to wit : one third money in hand , one A Recorded in Book of Est No 2 P. 234 299 - Thursday April 10 1845 by their Solicitors & made proof of publication , made herein as per fill & cause continued At this term of the Court the following Executors , administrators & Guardian filed their account current together with their receipts and vouchers for final settlement to wit Grove Lampman & Susan Lampson One of Stephen P Lampman Clark Bronson Admr of Edward T Goodrich decd Lavina Wyatt Admr of Samuel D Wyatt did Eleazer Dunham Admr of Jenniah Dunham decd Penney Adams Admr of So rene Adams decd Israel Leas Admr of William L Wills decd Wilder Jonah Joy Executor of John Jones decd & Mary Roberts Executors & of Jeremiah Roberts de Morgan Williams John W Cox Executors of Edith Smith decd Milton was Executor & c of Lorenzo Case decd Charles Carpenter Guardian of Sarah & Clark P Devinnell Ordered by the Court that the Prosecuting Attorney of this Court be allowed the sum of Sixty dollars for his services at each term of this Court during the evening year This day came into Court William Cunningham Guardian of Presley D. Harriet P. Susanna & Rhoda F Cunningham heirs of Jos Cunningham decd and made a final settlement of his accounts as Guardian whereby it appears that the said Guardian has received assets of his wards to the amount of \$ 254.00 , and that he has legally disbursed the sum of \$ 172 , 32 leaving a balance in his hands \$ 1.68 due the said Wards , which is ordered to be paid in ten days of an attachment to Ordered that this Court stand adjourned until tomon at Nine O'Clock ing at links

Citation:

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